

**PR-25-000754 In the Matter of THE GEORGE GARY VENIOT LIVING TRUST
– a) Petitioners Richard Pomares and Dana Garth’s Motion to Dismiss for
Lack of Subject-Matter Jurisdiction, Lack of Standing, Fraud on the Court,
Expiration of Time Limits, and No Legal Claim; or in the Alternative,
Improper Venue – DENIED. b) Petitioner Dana Garth’s Motion for Relief
from Admissions Deemed Admitted, Leave of Court Allowing for Filing of
Admissions – GRANTED.**

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: a) Motion to Dismiss For the reasons set forth below, the motion to dismiss is DENIED. Procedural As a threshold matter, the motion is procedurally defective. California does not generally authorize dismissal of a pleading through a freestanding motion to dismiss. Rather, the Code of Civil Procedure provides specific statutory procedures for challenging a pleading, including a demurrer, motion to strike, motion for judgment on the pleadings, or, where appropriate, summary judgment or summary adjudication. Respondents have not identified any statute authorizing dismissal of Petitioner's Probate Code section 850 petition through the present motion. The Court has previously rejected similar freestanding motions to dismiss on this basis. The Court also notes that it was unable to locate a proof of service filed in relation to the moving papers. Pursuant to rule 3.1300(c) of the California Rules of Court, proofs of service are to be filed at least five court days before the hearing. However, in light of the fact that the opposing party has not raised an objection based on service, any defect in service is waived. Merits Even if the Court were to reach the merits, the motion would be denied. Petitioner's petition seeks relief pursuant to Probate Code sections 850, 855, 859, and 17200 concerning the ownership and administration of alleged trust property. The probate court has jurisdiction over such proceedings, and Respondents have not demonstrated otherwise. Respondents principally argue that the petition is barred because Petitioner failed to file suit within 120 days following service of a notification purportedly given pursuant to Probate Code section 16061.7. However, the petition does not seek to invalidate or contest the trust instrument. Rather, Petitioner seeks to enforce the trust and obtain a determination regarding the identity of the proper successor trustee and ownership of trust property. On the present record, Respondents have not established that Probate Code section 16061.8 bars the petition as a matter of law. The remaining arguments regarding standing, venue, arbitration, no-contest provisions, and alleged fraud depend upon disputed factual issues concerning the operative trust documents and the parties' respective rights under those documents. Those issues are not properly resolved through the present motion. Objections The Court finds that the opposing party's objections were not material to disposition of the motion and therefore declines to rule on them. b) Motion for Relief from Admissions For the reasons set forth below, the motion is GRANTED. Procedural The Court was unable to locate a proof of service filed in relation to the moving papers. Pursuant to rule 3.1300(c) of the California Rules of Court, proofs of service are to be filed at least five court days before the hearing. However, in light of the fact that the opposing party has not raised an objection based on service, any defect in service is waived. Merits Code of Civil Procedure section 2033.300 permits withdrawal or amendment of admissions where the admissions resulted from mistake, inadvertence, or excusable neglect and where the party who obtained the admissions will not be substantially prejudiced in maintaining the action on the merits. The Court finds Respondent has made a sufficient showing that her failure to timely serve responses was the result of mistake, inadvertence, or excusable neglect. Respondent has submitted a declaration explaining the circumstances surrounding the default and has provided proposed responses. Although the showing is not particularly strong, the Court is mindful of California's policy favoring resolution of cases on their merits. The Court further finds Petitioner has not demonstrated substantial prejudice within the meaning of Code of Civil Procedure section 2033.300. The loss of the evidentiary benefit associated with deemed admissions does not alone constitute substantial prejudice. Accordingly, the June 12, 2026 order deeming admitted the matters contained in Petitioner's Requests for Admission, Set One, is vacated. With that stated, the Court observes that the moving party did not seek, nor does the Court grant, relief from any waiver of objections from the submission of untimely responses. (See Code Civ. Proc., § 2033.280(a).) Accordingly, within 14 days of service of the order, the moving party shall serve verified, code-compliant responses without objections to the propounding party's Requests for Admission, Set One. To the extent the proposed responses omit responses to any requests or fail to comply with the Civil Discovery Act, amended responses are required. Sanctions The Court declines to award sanctions in connection with this motion. Objections The Court reserves on Petitioner's evidentiary objections to the extent necessary. Any objections directed to matters irrelevant to the present motion are sustained on relevance grounds. The remaining objections need not be reached. The following are

the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 6ed1110b220be639031dbf1911399aa1b3d9f5e99147c0bfa83a9bf1f48a4dd0

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a) Motion to Dismiss

For the reasons set forth below, the motion to dismiss is DENIED.

Procedural

As a threshold matter, the motion is procedurally defective. California does not generally authorize dismissal of a pleading through a freestanding motion to dismiss. Rather, the Code of Civil Procedure provides specific statutory procedures for challenging a pleading, including a demurrer, motion to strike, motion for judgment on the pleadings, or, where appropriate, summary judgment or summary adjudication. Respondents have not identified any statute authorizing dismissal of Petitioner's Probate Code section 850 petition through the present motion. The Court has previously rejected similar freestanding motions to dismiss on this basis.

The Court also notes that it was unable to locate a proof of service filed in relation to the moving papers. Pursuant to rule 3.1300(c) of the California Rules of Court, proofs of service are to be filed at least five court days before the hearing. However, in light of the fact that the opposing party has not raised an objection based on service, any defect in service is waived.

Merits

Even if the Court were to reach the merits, the motion would be denied.

Petitioner's petition seeks relief pursuant to Probate Code sections 850, 855, 859, and 17200 concerning the ownership and administration of alleged trust property. The probate court has jurisdiction over such proceedings, and Respondents have not demonstrated otherwise.

Respondents principally argue that the petition is barred because Petitioner failed to file suit within 120 days following service of a notification purportedly given pursuant to Probate Code section 16061.7. However, the petition does not seek to invalidate or contest the trust instrument. Rather, Petitioner seeks to enforce the trust and obtain a determination regarding the identity of the proper successor trustee and ownership of trust property. On the present record, Respondents have not established that Probate Code section 16061.8 bars the petition as a matter of law.

The remaining arguments regarding standing, venue, arbitration, no-contest provisions, and alleged fraud depend upon disputed factual issues concerning the operative trust documents and the parties' respective rights under those documents. Those issues are not properly resolved through the present motion.

Objections

The Court finds that the opposing party's objections were not material to disposition of the motion and therefore declines to rule on them.

b) Motion for Relief from Admissions

For the reasons set forth below, the motion is GRANTED.

Procedural

The Court was unable to locate a proof of service filed in relation to the moving papers. Pursuant to rule 3.1300(c) of the California Rules of Court, proofs of service are to be filed at least five court days before the hearing. However, in light of the fact that the opposing party has not raised an objection based on service, any defect in service is waived.

Merits

Code of Civil Procedure section 2033.300 permits withdrawal or amendment of admissions where the admissions resulted from mistake, inadvertence, or excusable neglect and where the party who obtained the admissions will not be substantially prejudiced in maintaining the action on the merits.

The Court finds Respondent has made a sufficient showing that her failure to timely serve responses was the result of mistake, inadvertence, or excusable neglect. Respondent has submitted a declaration explaining the circumstances surrounding the default and has provided proposed responses. Although the showing is not particularly strong, the Court is mindful of California's policy favoring resolution of cases on their merits.

The Court further finds Petitioner has not demonstrated substantial prejudice within the meaning of Code of Civil Procedure section 2033.300. The loss of the evidentiary benefit associated with deemed admissions does not alone constitute substantial prejudice.

Accordingly, the June 12, 2026 order deeming admitted the matters contained in Petitioner's Requests for Admission, Set One, is vacated.

With that stated, the Court observes that the moving party did not seek, nor does the Court grant, relief from any waiver of objections from the submission of untimely responses. (See Code Civ. Proc., § 2033.280(a).)

Accordingly, within 14 days of service of the order, the moving party shall serve verified, code-compliant responses without objections to the propounding party's Requests for Admission, Set One. To the extent the proposed responses omit responses to any requests or fail to comply with the Civil Discovery Act, amended responses are required.

Sanctions

The Court declines to award sanctions in connection with this motion.

Objections

The Court reserves on Petitioner's evidentiary objections to the extent necessary. Any objections directed to matters irrelevant to the present motion are sustained on relevance grounds. The remaining objections need not be reached.

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